

The Goa Medical Council Rules, 1995

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State of Goa - Act

The Goa Medical Council Rules, 1995

GOA

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The Goa Medical Council Rules, 1995

Rule THE-GOA-MEDICAL-COUNCIL-RULES-1995 of 1995

Published on 4 July 1996

Commenced on 4 July 1996

[This is the version of this document from 4 July 1996.]

[Note: The original publication document is not available and this content could not be verified.]

The Goa Medical Council Rules, 1995

Published vide Notification No. 9-3-94-4/PHD, dated 4-7-1996

9.

-3-94-IV/PHD. - Whereas vide Notification No. 9-3-94-IV/PHD dated 30-1-95, published in Official Gazette, Series I No. 3 dated 20-4-95, the draft Goa Medical Council Rules, 1995, were pre-published as required by sub-section (1) of section 28 of the Goa Medical Council Act, 1991 (Goa Act 6 of 1991) inviting suggestions/objections from the persons likely to be affected thereby, within a period of 30 days from the date of publication of the said Notification in the Official Gazette.

And whereas the said Gazette was made available to the public on 20-4-1995;

And whereas all objections and suggestions to the said draft Rules received within the prescribed time limit have been considered by the Government;

Now, therefore, in exercise of the powers conferred by sub-section (1) and (2) of section 28 of the Goa Medical Council Act, 1991 (Goa Act 6 of 1991), and all other powers enabling it in this behalf, the Government of Goa hereby makes the following rules, namely:-

Chapter I

Part I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Goa Medical Council Rules, 1995.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context requires otherwise.-

(a)

'Act' means The Goa Medical Council Act, 1991 (Goa Act 6 of 1991).

(b)

'Form' means a form appended to these rules.

(c)

'Section' means a section of the Act.

(d)

Words and phrases used - but not defined in these rules shall have the same meaning as assigned to them in the Act.

Part II ? Election

3.

Representatives of medical faculties of Universities.

(1)

The Registrar shall, by notice in writing inform the Registrar of every University established by law in the State that the term of Office of the member is due to expire on the date specified in the notice, such notice being given not later than sixty days before the expiry of such term; and likewise, inform the Registrar of every casual vacancy within thirty days of its occurrence; and call upon the Registrar to hold the election before the date specified in the notice. The notice shall be sent by registered post.

(2)

The name of the person elected shall, as soon as possible but not later than seven days after the date of declaration of the result of the election, be communicated by the Registrar of such University to the Government.

Part III ? Representative of Registered Medical Practitioners

4.

Preparation of electoral rolls.

(1)

The Registrar shall prepare the electoral roll of registered practitioners from the register of Medical Practitioners. The electoral roll shall include the names of all practitioners on such date prior to the date of notice published under sub-rule (3) as may be fixed by the Council for each election.

(2)

The electoral roll shall be kept open for inspection in the office of the Council at least thirty days before the last date fixed for receipt of nomination papers under Rule 6.

(3)

The Registrar shall, at the same time issue a notice in the Official Gazette and in four prominent newspapers in Form 1 calling upon the registered practitioners to send their objections or suggestions, if any, with regard to the entries in the electoral roll before a date specified in the notice which will not be earlier than fifteen days of the publication of this notice. All objections received before the date specified in the notice shall be considered by the Registrar and correction made, if necessary, in the electoral roll.

(4)

Any practitioner aggrieved by the decision of the Registrar may, within five days, from the date of receipt of the order, prefer an appeal to the Government.

5.

Returning Officer.

- The Registrar shall normally be the Returning Officer. However, the Council shall have the powers to appoint an independent Returning Officer.

6.

Fixation of the stages of election.

(1)

The Returning Officer shall fix the date, hour and place for the following stages of the election, namely:-

(a)

receipt of nomination papers;

(b)

scrutiny of nomination papers;

(c)

withdrawal of candidature;

(d)

receipt of ballot papers; and

(e)

counting of votes.

(2)

The date of the receipt of nomination papers shall be not less than forty days before the date fixed for the receipt of ballot papers. The date fixed for scrutiny of nomination papers shall be not less than thirty five days before the date fixed for receipt of ballot papers. The date fixed for withdrawal of candidature shall be not later than three days after the completion of scrutiny of nomination papers or if that day is a public holiday, the next succeeding day which is not a public holiday.

7.

Notice of election.

- At least thirty days before the date fixed for the receipt of nomination papers, the Returning Officer shall publish in the Official Gazette and in at least four newspapers selected by him a notice in Form 2 notifying the dates fixed under rule 6 and calling upon the electors to elect new members and to send nominations for the purpose.

8.

Nomination of Candidates.

(1)

Every registered practitioner whose name appears in the electoral roll prepared under rule 4 (hereinafter referred to as 'the elector' in this part), shall be qualified for election under this Part.

(2)

Candidates qualified for election shall be proposed and seconded by practitioners qualified as electors.

(3)

The nomination papers shall be in Form 8 and the Forms shall be supplied by the Registrar to every candidate on his requisition, either in person or through a representative.

(4)

Every nomination paper duly completed and signed by the proposer and the seconder and subscribed by the candidate himself as assenting to the nomination shall be sent by post or otherwise so as to reach the returning officer on or before the date and the time appointed under rule 6 for receipt of nomination papers. Nomination papers received after the time so fixed shall be rejected. The Returning Officer shall immediately on receipt of a nomination paper record thereon the date and the time of its receipt by him.

9. Scrutiny of nomination papers.

- On the date and the time appointed for scrutiny of nomination papers, the candidates and one proposer and seconder of each candidate may attend at the appointed time and place and the returning officer shall give them all reasonable

facilities to examine the nomination papers which have been delivered within the time fixed for their receipt under rule 6.
10.

Disposal of objections.

- The Returning Officer shall examine the nomination papers and shall decide all objections which may be made before him to any nomination and may, either on such objections or on his own motion, after such summary enquiry, if any, as he thinks necessary, refuse any nomination for any of the following reasons, namely:-

(a)

that the candidate or his proposer or his seconder is not an elector;

(b)

that there has been any failure to comply with the provisions of the Act or the Rules made thereunder relating to elections to the Council;

(c)

that the signature of the candidate or his proposer or his seconder is not genuine or has been obtained by fraud coercion or under influence;

(d)

that the candidate is disqualified or is not qualified under the Act or these rules for election.

11.

Completion of scrutiny.

(1)

The scrutiny shall be completed on the day appointed in this behalf and no adjournment of scrutiny shall be allowed.

(2)

The Returning Officer shall, on the same day, endorse on each nomination paper, his decision as to whether the nomination paper has been accepted or rejected and in case the nomination paper is rejected, shall record, the reasons for such rejection.

12.

Withdrawal of candidature.

- Any candidate may withdraw his candidature within three days of completion of scrutiny of nomination papers by a notice in writing signed by him and delivered by post or hand to the Returning Officer.

13.

List of contesting candidates.

- On completion of the scrutiny of the nominations and after the expiry of the period within which a candidate may withdraw his candidature under rule 12, the Returning Officer shall forthwith under his signature publish on the notice board at the office of the Council a list of contesting candidates.

14.

Procedure of uncontested elections.

- After the publication of the list of contesting candidates, if the number of contesting candidates does not exceed the number of vacancies to be filled in, the returning officer shall forthwith declare such candidates to be duly elected to fill such vacancies without any votes being taken and report the names of such candidates to the Government.

15.

Contested election.

(1)

When there are more contesting candidates than the existing vacancies, the voting shall be by postal ballot, or by personal voting within the stipulated time and date.

(2)

The Returning Officer shall forthwith publish the names and addresses of the contesting candidates in the Official Gazette and the same shall be displayed on the notice board in the office of the Council.

16.

Printing of ballot papers.

- The Returning Officer shall arrange for the printing of ballot papers in Form 4 with the names of the contesting candidates entered therein in alphabetical order.

17.

Despatch of ballot papers to electors.

(1)

Twenty one days before the date fixed for the receipt of ballot paper under rule 6, the Returning Officer shall send to every elector by post under certificate of posting:-

(a)

One ballot paper in Form 4 signed by him;

(b)

A smaller blank cover with the words "Ballot Paper" printed thereon; and

(c)

A large cover addressed to himself in Form- 5.

(2)

The Returning Officer shall make in one copy of the electoral roll against the name of every elector to whom a ballot paper and covers have been sent. The marked copy of the electoral roll and the counterfoils of the ballot papers sent shall be sealed in a packet immediately after the date fixed for receipt of ballot papers under rule 6.

18.

Issue of duplicate ballot paper.

- If any elector has not received his ballot paper and covers or has inadvertently spoilt the paper or lost it, then, he may send to the Returning Officer at least seven days before the date fixed for receipt of ballot paper under rule 6, a declaration to that effect signed by himself and accompanied by spoilt papers, if any, and requesting the Returning Officer to send him duplicate papers in place of those not received, spoilt or lost. When duplicate papers are issued, a record thereof shall be kept by the Returning Officer and a mark "Duplicate" made on the larger cover and on the ballot paper issued. The Returning Officer shall cancel any spoilt papers received back from the elector.

19.

Delivery of ballot paper to elector in person.

- Any elector whose ballot paper is returned undelivered may apply to the Returning Officer in person for such ballot paper before the date fixed for receipt of ballot papers under rule 6 and take delivery of the ballot paper after satisfying the Returning Officer of his identity, and giving a receipt.

20.

Recording of votes by electors.

(1)

On receipt of the ballot paper, an elector shall record his votes by putting crosses in column (3) of the ballot paper against the names of candidates to whom he wishes to give his votes. The elector shall have as many votes as there are vacancies and can give only one vote to each candidate. The elector shall not reveal his identity on the ballot paper by putting his signature or by any other means.

(2)

After recording his vote, the elector shall put the ballot paper in the smaller cover, close it and put it in the larger cover. The elector shall then close the larger cover and write his full name and sign at the places marked on the larger cover and shall then send the same by post or otherwise so as to reach the Returning Officer on or before the date and the hour appointed under rule 6 for receipt of ballot papers.

(3)

Any elector who is under any disability which incapacitates him from recording his vote in the above manner may take the assistance of a Gazetted Officer or a Magistrate in recording his votes. Such Officer shall, in such case, record on the back of the larger cover a certificate in the following manner, namely:-

*I (Name of the Officer) hereby certify that
..... (Name of the elector) being incapable of recording his votes due
to (cause of incapacity) requested me to record his votes and I have recorded his votes
according to his desire and in his presence*.

Signature

Seal of his Office or Rubber Stamp of his designation

21.

Custody of ballot papers.

- All covers containing ballot papers shall on receipt be kept in a sealed box by the Returning Officer after noting the date and time of receipt on each cover. Any covers received after the date and time fixed for receipt of ballot papers under rule 6 shall be kept in a separate packet and shall not be opened.

22.

Scrutiny and counting of votes.

(1)

The scrutiny and counting of votes shall be undertaken by the Returning Officer at the time, day and place appointed under rule 9.

(2)

A candidate and not more than one representative, duly authorised by him, may remain present at the time of counting of votes.

(3)

The whole ballot paper shall be treated as invalid-

(a)

if the elector has failed to write his full name and make his signature on the larger cover in which the smaller cover containing the ballot paper is kept;

(b)

if the mark (x) is placed opposite the names of more candidates than the number of seats to be filled or if more votes are given than he is entitled to under sub-rule (1) of rule 20;

(c)

if the elector has put his signature on the ballot paper and has made any other mark thereon which may reveal his identity;

(d)

if the Returning Officer receives more than one ballot paper from the one smaller cover or more than one smaller cover in any larger cover, all such ballot papers shall be treated as invalid.

(4)

If the mark (x) is so placed as to make it doubtful to whom the candidate the elector has given his vote, the vote shall be deemed to be invalid.

(5)

If any elector has given more than one vote to any candidate, only one of such votes given shall be taken to be valid, provided that the ballot paper is otherwise not invalid.

23.

Declaration of result of election.

(1)

When the counting of votes is completed, the Returning Officer shall forthwith declare the candidates to whom the largest number of votes has been given, to be elected. If there is an equal number of votes in favour of each of two or more candidates for one vacancy, the selection shall be determined by the Returning Officer by draw of lots.

(2)

The Returning Officer shall also inform each successful candidate by letter of his having been elected to the Council and report to the Government the date of declaration of the election, and the result thereof.

(3)

After the result of the election has been declared by him, the Returning Officer shall seal the ballot papers and all other documents relating to the election and shall retain the same with himself in safe custody for a period of six months and thereafter cause them to be destroyed.

24.

Filling of casual vacancy.

- If there is a vacancy of member elected under clauses (d) and (e) of sub-section (3) of section 3 of the Act, the President shall, subject to the provision contained in the proviso to sub-section (1) of section 5 of the Act, take steps to fill it up as soon as possible by election in accordance with the rules as above.

Part IV

25.

Election of President and Vice-President.

- As soon as possible after the President or Vice-President, as the case may be, ceases to hold office either because of the expiry of the term of office or for any other reason whatsoever, the Council shall proceed to elect the successor President or Vice-President.

Part V

26.

Time limit for referring election disputes.

- The time limit for referring any dispute referred to in sub-section (7) of section 3 of the Act to the Government shall be, in the case of elected members, thirty days from the date of declaration of the result of election, and in the case of election of the President or Vice-President, from the date of their election.

Chapter II

Conduct of Business of the Council

27.

Calling of meetings.

(1)

The Council shall ordinarily meet for the transaction of business in the months of January, May and November in each year, but the President may, whenever he thinks fit and shall upon a written requisition of not less than 25 members and on a date not later than 15 days after the receipt of such requisition, call an extraordinary meeting.

(2)

The exact date, hour and place of such meetings shall be decided by the President.

28.

Notice for calling a meeting.

(1)

All members of the Council shall be given thirty clear days notice of an ordinary meeting and ten clear days notice of an extraordinary meeting. Every notice shall also be pasted at the Office of the Council.

Such notice shall specify the date, time and place of the meeting and state whether the meeting is for general business or for any special business. If the meeting is for special business, the nature of such business shall also be mentioned in the notice.

(2)

The Registrar shall send to all members a copy of the agenda and explanatory notes thereon ten clear days' before the date fixed for an ordinary meeting.

29.

Motions for insertion in agenda.

- Any member may send a motion to be included in the agenda for an ordinary meeting so as to reach the Registrar twenty clear days before the date fixed for the meeting. The Registrar shall take the orders of the President for inclusion of such motion in the agenda and where any motion, is disallowed, the reasons for doing so shall also be communicated along with the agenda to the member who sent the motion, provided that the President may, for reasons to be recorded in writing, accept any motion received, after the expiry of the aforesaid period.

30.

Attendance at meeting.

- At each meeting an attendance register shall be placed in the meeting room and every member present shall sign against his name in the register.

31.

Business to be transacted at meetings.

- At an ordinary or extraordinary meeting, no business or proposition other than that specified in the agenda shall be taken up:

Provided that the president's authority may permit any business or proposition to be discussed which is of an urgent nature and which could not reasonably be entered in the notice in an ordinary meeting but not in extraordinary meeting.

32.

Adjournment of meeting.

(1)

Subject to the provisions of the Act, the presiding authority may, at any time for reasons to be recorded in writing, adjourn the meeting to any future day or to any hour of the same day.

(2)

Usually a meeting which is adjourned for want of quorum shall be started after $\frac{1}{2}$ an hour on the same day.

(3)

When a meeting has been adjourned to a future day the President may change such day to any other day, and the Registrar shall send a written notice of the change to each member of the Council.

The Registrar shall, if possible, send a notice of the adjourned meeting if the meeting has been adjourned for some other day due to some unforeseen circumstances which shall be recorded.

(4)

At an adjourned meeting, the business that is left undisposed of at the original meeting from which the adjournment took place shall, unless the President otherwise directs, take precedence over new business.

33.

Minutes of meetings.

- Minutes of the proceedings of each meeting of the Council shall be kept in a book to be provided for the purpose and shall include the names of the members and if any member present at the meeting so desires, the names of the members voting respectively for or against any motion. This book shall be signed by the President at the next meeting after the minutes are confirmed and shall at all reasonable times, be open for inspection by any member of the Council. Copies of the minutes shall be supplied to every member of the Council within thirty days from the date of the meeting.

34.

Circulation of written proposition.

- Whenever it appears necessary to the President to convene a meeting, he may, instead of convening a meeting, circulate a written proposition with the reasons for such proposition for the observation and votes of the members of the Council.

35.

Fees for attendance at meetings.

- Every member of the Council (including the President) who is not a Government servant shall be paid a fee of three hundred rupees per day for attending a meeting of the Council.

36.

Travelling allowance for attending meetings.

- The members of the council (including the President) shall be paid travelling expenses and daily allowance (T.A/D.A) for attending the meetings of the Council as follows:-

Members who are Government servants may draw the travelling and halting allowance which they may be entitled to claim for travelling on official duties according to their grades under the service rules:

Provided that, if a non-official member travels by air, he shall draw air fare. A certificate to the effect that the journey (one way or both ways, as the case may be) was performed by air shall be attached to travelling allowance bill. Daily (Halting) allowance shall be the same as is admissible to Class-I (Senior) grade Government employee, for the days of travel and work.

Chapter III

Executive Committee

37.

Number of members.

- The Executive Committee shall consist of the President, ex-officio, the Vice-President, ex-officio, the Director of Health Services, ex-officio, the Dean or Director, Goa Medical College, ex-officio and four members elected by the Council from amongst its members.

38.

Term of office.

- The members of the Executive Committee shall hold Office for one year from the date of their election.

39.

Disability to continue as member.

- A member shall cease to be a member of the Executive Committee.-

(a)

if he ceases to be a member of the Council; or

(b)

if he remains absent from two consecutive meetings of the Executive Committee without the leave of absence from the Executive Committee.

40.

Resignation of member.

- A member may resign at any time by a notice in writing to the President. Such resignation shall take effect from the date on which it is accepted by the President.

41.

Casual vacancies.

(1)

The Council shall, as soon as there is a casual vacancy in the office of a member of the Executive Committee, fill it up by electing a member from amongst its members:

Provided that any such vacancy occurring within two months prior to the expiry of the term of the members, shall not be filled.

(2)

A member elected under sub-rule (1) shall hold office so long as the member in whose place he is elected would have held it, if the vacancy had not occurred.

42.

Calling of meetings.

- The Executive Committee shall ordinarily meet once every two months on such date as may be fixed by the President. The President may, whenever he thinks fit and shall, upon a written requisition of not less than 3 members and on a date not later than seven days after the receipt of such request, call an extraordinary meeting.

43.

Notice of meeting.

- All members of the Executive Committee shall be given seven clear days' notice of an ordinary meeting and three clear days' notice in the case of an extraordinary meeting. Such notice shall specify the place, date and time of the meeting and state whether the meeting is a general meeting or a special meeting and the business to be transacted thereat.

44.

Presiding authority.

- The President, when present, shall preside at every meeting of the Executive Committee. If, at any meeting, the President is absent, the Vice-President shall preside at such meeting. In the absence of both, the members present shall elect the presiding authority from amongst themselves.

45.

Attendance at meeting.

(1)

At each meeting, an attendance register shall be placed in the meeting room and every member present shall sign against his name in the register.

(2)

Three members including the President shall form a quorum.

46.

Business to be transacted at meetings.

- At any ordinary meeting and in case of extraordinary meeting no business other than that specified in the notice calling such meetings shall be transacted:

Provided that the presiding authority may permit any business to be discussed which is of urgent nature and which could not reasonably be entered in the notice.

47.

Adjournment of meetings.

(1)

If there is no quorum present, the presiding authority shall adjourn the meeting for half an hour on the day.

(2)

Any special or ordinary meeting may, with the consent of a majority of members present, be adjourned from time to time but only the business left undisposed of at the meeting from which the adjournment took place shall be transacted at the adjourned meeting.

48.

Decision at meeting.

(1)

All questions at a meeting of the Executive Committee shall be decided by a majority of votes of the members present and voting.

(2)

The presiding authority shall have second or casting vote in all cases of equality of votes.

49.

Minutes of meeting.

- Minutes of the proceedings of each meeting of the Executive Committee shall be kept in a book to be kept for the purpose and shall include the names of the members and if any member present at the meeting so desires, the names of the members voting for or against any question. This book shall be signed by the presiding authority at the next meeting after the minutes are confirmed, and shall, at all reasonable times, be open to inspection by any member of the Executive Committee. The copies of the minutes shall be supplied to every member within fifteen days from the date of the meeting.

50.

Power, duties and functions of Executive Committee.

(1)

The Executive Committee shall consider all petitions or applications addressed to the Council and shall submit its report thereon to the council.

(2)

The Executive Committee shall consider and prepare a report of any subject which may seem to require the attention of the Council or on such subjects as may be indicated to it by the Council.

(3)

The Executive Committee shall consider and report to the Council on all matters concerning the inclusion or deletion of any qualification or from the Schedule to the Act.

(4)

The Executive Committee shall call from the authorities of any Medical College or School or from any examining body such information as may be required by the Council and place it before the Council with its report.

(5)

The returns of professional examinations and their results shall be collected by the Executive Committee which shall prepare annually a table of results of such examinations to be laid before the Council.

(6)

The Executive Committee shall appoint Disciplinary Committees to inquire into the alleged misconduct by a registered medical practitioner. This Committee shall consist of three persons and senior-most amongst them shall be the chair-person. The Registrar shall assist all such Disciplinary Committees in conducting inquiries and submission of their report to the Council.

51.

Fees for attendance at meetings.

- Every member, other than Government official, shall be paid a fee of Rs. 300/- per day for attending a meeting of the Executive Committee.

52.

Travelling allowance for attending meetings.

- The members shall be paid travelling allowances for attending meetings of the Executive Committee as per rates specified for Council meetings.

Chapter IV

Registration

53.

Form of Register and further particulars to be included.

- The register shall be in Form 6 appended to these rules.

54.

Division of Register.

- The register shall be divided into the following parts, namely:-

Part I ? shall contain the names of practitioners who possess any of the qualifications included in the First or the Second Schedule or in Part-II of the Third Schedule to the Indian Medical Council Act, 1956 (Central Act 102 of 1956).

Part II ? shall contain the names of practitioners who possess any of the qualifications included in Part I of the Third Schedule to the Indian Medical Council Act, 1956 (Central Act 102 of 1956).

Part III ? shall contain the names of other registered practitioners, qualifications of whom are approved by the Council from time to time.

55.

Application for registration.

- An application for registration shall be made in Form 15 while an application for renewal of registration shall be made in Form 10 which will be supplied by the Registrar on request.

56.

Manner of paying fees.

- The fees as specified by the Council shall be paid by Demand Draft made payable at Panaji, Goa.

57.

Certificate of registration.

- The Certificate of registration shall be given to every registered practitioner in Form 8 and signed by the Registrar.

58.

Removal of name from Register at the practitioner's request.

(1)

A registered medical practitioner may himself make an application for the removal of his name from the register. The application shall be accompanied by a declaration in the form of an affidavit made by the applicant that no proceedings for the purposes of section 22 of the Act are pending against him or that he is not aware of any proceedings or any reason for the institution of any proceedings which might result in the removal of his name from the register or in depriving him of qualification entitling him to be registered.

(2)

The Registrar shall bring such application before the next meeting of the Council or the Executive Committee, which will consider the application and any objections thereto, and the President may put from the chair the question:

"Whether The Registrar Shall Remove The Applicant's Name From The Register".

(3)

If the Council or the Executive Committee, as case may be, grants the application, the Registrar shall remove the applicant's name from the register and send notice of such removal to the applicant by a registered letter addressed to his registered address and notify the same either in local newspaper or in the Official Gazette, as directed by the Council.

59.

Provisional registration.

(1)

Any person who desires to be registered provisionally under section 25 of the Indian Medical Council Act, 1956 (Central Act 102 of 1956), shall apply to the Registrar in Form 14 which will be supplied by the Registrar on request.

(2)

The certificate of provisional registration shall be in Form 9 and shall be printed on paper of a colour different from the paper on which the certificate of registration under rule 57 is printed.

(3)

This provisional registration shall entitle the person in management of patients at Government Hospital or allied institutions only with a view to obtain his degree after completion of his internship. The aforesaid certificate shall not entitle him to practice at any other institute or in private.

60.

Special registration (Temporary).

- Temporary registration may be granted to a person of eminence from abroad who is invited to perform/demonstrate any surgical procedure if the inviting institute, applies to the Council to that effect along with the bio-data and the qualifications of the invitee and such qualifications are recognised by the Council. A temporary registration will then be issued for limited purpose and period, on payment of fee of rupees two hundred only.

61.

Renewal of registration.

- The Registrar shall issue notice for renewal of registration in Form 7 and send it to all persons registered with the Council by Registered Post. If no reply/payment is received, a second/final notice in Form 16 shall be issued and the name thereafter be removed from the register if no renewal fee is paid within two weeks.

Chapter V

Inquiries

62.

Complaints against registered practitioners.

(1)

The Council may, suo-motu or on any complaint made to it in that behalf, hold an inquiry in respect of misconduct of any registered practitioner for the purposes of the Act.

(2)

Any complaint or information received in the Office of the Council about the misconduct of any registered practitioner shall be first submitted by the Registrar to the President.

(3)

No complaint shall be entertained unless it is in writing, addressed to the Council and signed by the person making it and shall state the grounds of complaint, and shall be accompanied by declarations as to the facts of the case. All anonymous complaints may be disregarded, by the President, unless he finds it essential to process the same in larger interest of the profession.

(4)

Every declaration shall state the description and true place of abode of the declarant, and where a fact stated in a declaration is not within his personal knowledge, the source of the information, and grounds for the belief of the declarant in its truth shall be accurately and fully stated. Any declaration or part thereof which is made in contravention of this rule shall not be accented as evidence.

(5)

If the President has reason to believe that the complaint is pseudonymous, he may call upon the complainant to furnish further particulars, for ascertaining if the complaint is genuine.

63.

Procedure for submission of complaint to Executive Committee.

(1)

Subject to the provisions of rules hereunder, the President may, on going through the complaint and all papers submitted by the complainant, instruct the Registrar to direct the practitioner by means of a Registered letter for any explanation he may have to offer.

(2)

All the documents pertaining to the complaint, including any explanation forwarded by the registered practitioner, shall then be referred to the Executive Committee alongwith the remarks of the President, if any.

64.

Power of Executive Committee to refer complaint to Council.

(1)

The Executive Committee shall consider the complaint and may cause further investigation to be made and may take such legal advice by consulting any legal practitioner/medico legal consultant as it may deem fit.

(2)

The Executive Committee shall, after consideration of the case, record its opinion and refer it to the Disciplinary committee for holding an inquiry and the decision of the Disciplinary Committee shall be final.

65.

Action to be taken by the Council.

- The Council shall,-

(a)

exonerate the medical practitioner of the charges levelled against him if the explanation offered by him is considered satisfactory by the council; or

(b)

direct punishment to be given in accordance with the advice of the Disciplinary Committee.

66.

Cases in which Executive Committee may direct an inquiry.

(1)

The Executive Committee may direct in all cases in which an inquiry for the purpose of clauses (a) and (b) of sub-section (1) of section 22 of the Act is necessary to hold an inquiry by the Disciplinary Committee in accordance with the procedure as laid down under rules 65 to 73 and for that purpose the Council may appoint an assessor to advise the Disciplinary Committee, if so desired. Provided that, such inquiry shall not be necessary in cases where a registered practitioner has been convicted for misconduct within the meaning of clauses (i), (ii) and (iii) of the Explanation to sub-section (1) of section 22 of the Act. In such cases, the President shall obtain and place before the Council a copy of the Court's judgement and the Council shall thereupon decide on the punishment to be imposed under rule 65(b) read with section 22 of the Act.

(2)

An assessor or medico legal consultant so appointed shall be paid a remuneration of Rs. 300/- per day for attendance at an inquiry.

67.

Notice of charges on registered practitioner.

(1)

The Chairman and the Disciplinary Committee shall cause to be served on the registered practitioner a notice in Form 11 subject to such variation as the circumstances of the case may require. Such notice shall specify the nature and particulars of the charges drawn clearly and precisely and shall inform him of the day on which the Council intends to deal with the case, and shall call upon the practitioner to put in the written statement of his defence within a period of not less than 15 days or such other period not exceeding 60 days, as may be permitted by the Disciplinary Committee and to attend before the Disciplinary Committee on such date as specified thereof. The notice shall be sent at least 3 weeks before the date of enquiry.

(2)

The notice shall be accompanied by a statement of allegations on which each charge is based. The relevant allegations as to facts, the inferences which they lead to and the circumstances supporting such inferences shall be clearly mentioned alongwith any other circumstances proposed to be considered while passing orders on the case.

(3)

Copies of the relevant documents, if any (including any document given or sent to the Disciplinary Committee by or on behalf of the other party which such other party shall be entitled on proper proof to use at the hearing as evidence in support of or in answer to the charges specified in the notice of inquiry) shall also be supplied to the registered practitioner alongwith the notice and statement of allegations.

(4)

Copies of any other documents or statements required by such practitioner to prepare his defence may also be supplied to him on request or he may be allowed to take copies.

68.

Reply to notice.

- The registered practitioner shall within the time specified in the notice or such extended period as may be permitted by the Chairman, put in written statement of his defence and state whether he desires to be heard in person by the Disciplinary Committee.

69.

Council and complainant, if any, to be supplied with copies of all documents, etc.

(1)

copies of all material documents including the written statement of defence, if any, which is placed before the Council as evidence in regard to the case, shall be supplied to all members of the Disciplinary Committee before the hearing of the case commences.

(2)

The complainant may, on application in writing, obtain copies of any explanation, statement or other documents put forth in his defence by the registered practitioner.

70.

Legal assistance at inquiry.

- At the hearing of the case by the Disciplinary Committee, the Executive Committee may be represented by a legal practitioner as an amicus curiae if found necessary, and the complainant as well as the practitioner also could be represented or assisted by their legal practitioners at their own cost:

Provided that, where any advice is tendered to the Committee by an assessor, if appointed under the Act, on any question of law, as to evidence, procedure or any other matter, such advice shall be subject to the provisions of the Act, even though it will not be binding on the Committee.

71.

Procedure of inquiry.

(1)

Where as complainant appears personally or through an Advocate, the following procedure shall be followed, namely:-

(a)

The Registrar will read to the Executive Committee the notice of inquiry addressed to the practitioner;

(b)

The complainant will then be invited to state his case by himself or through his Advocate and to produce his evidence in support of it at the conclusion of the evidence of the complainant, his case will be closed;

(c)

The practitioner will then be invited to state his case by himself or by his Advocate and to produce his evidence in support of his case, He may address the Council either before or at the conclusion of his evidence but only once;

(d)

At the conclusion of the practitioner's case the Executive Committee shall, if the practitioner has produced evidence, hear the complainant in reply on the case generally, but will bear no further evidence except in any special case in which the Committee may think it right to receive such further evidence. If the practitioner produces no evidence, the complainant will not be heard in reply except by special leave of the Committee;

(e)

Where a witness is produced by any party before the Executive Committee he will be first examined by the party producing him, and be cross examined by the opposite party and then re-examined by the party producing him. The Executive Committee reserves to itself the right to decline to admit in evidence any declaration where the declarant is not present or declines to submit to cross-examination;

(f)

The Chairman and the Assessor, if any, appointed under the Act, may put question to the complainant and registered practitioner including any of their witnesses; and members of the Executive Committee, through the Chairman, may likewise put questions to them.

(2)

When there is no complainant or no complainant appears, the following procedure shall be followed, namely:-

(a)

The Registrar shall read to the Executive Committee the notice of inquiry addressed to the practitioner, and will state the facts of the case and produce before the Executive Committee the evidence by which it is supported in the presence of the registered medical practitioner.

(b)

The practitioner shall then be invited to state his case by himself or by his legal practitioner and to produce his evidence in support of it. He may address the Executive Committee either before or at the conclusion of his evidence, but only once.

(c)

The legal practitioner of the executive Committee, if any, may be heard in reply if the Executive Committee so desires.

72.

Record of proceedings at inquiries.

- The Chairman shall keep a record of proceedings at the inquiry held under these rules including the evidence of each witness, through the Registrar and subscribe his signature on the record each day of the proceedings.

73.

Power of Committee to give further opportunity to practitioner to make statement.

- Notwithstanding anything contained in these rules, after completion of the inquiry, the registered practitioner shall be given a further opportunity of making any oral or written statement. Copies of such evidence as are required by the registered practitioner for making such statement shall be supplied to him.

74.

Decision of Committee and implementation.

- As soon as the hearing of the case is over and the registered practitioner has made his oral or written statement, if any, the Executive Committee shall deliberate thereon in private and at the conclusion of the deliberation, the Chairman shall forward the decision of the Executive Committee to the Council for its records but shall pronounce its decision at the earliest. If it is not possible to declare the decision immediately at any time thereafter, the Chairman shall direct the Registrar to inform the parties of the decision of the council by a Registered letter and to implement the decision, but not later than fifteen days.

75.

Re-entry of name of practitioner in register.

(1)

Every application for re-entry of name in the register shall be in Form 12 and specify the grounds on which the application is made. The application shall be accompanied by the applicant's certificate of degree, diploma or licence and also by a certificate from any Gazetted Officer of the Government or from a Justice of Peace as to his good character since the removal of his name from the register.

(2)

The President shall cause such inquiries to be made as he deems fit in respect of the application and place it before the Council at its next meeting for decision.

(3)

The decision of the Council shall be communicated to the applicant, and if the Council agrees to re-enter the name in the register, a fee of Rs. 250/- (Rupees two hundred and fifty only) shall be paid by the practitioner before his name is entered in the register by the Registrar.

Chapter VI

Appeals

76.

Appeals.

(1)

Every appeal by a person aggrieved by any decision of the Registrar and/or Executive Committee shall be addressed to the President and shall state the grounds for the appeal and shall be accompanied by all relevant documents in original which shall be returned alongwith the decision communicated under the rules.

(2)

The President may call for any additional particulars that may be required after going through the appeal, and the original papers on which the Registrar and/or Disciplinary Committee has given its decision.

(3)

The appeal shall be placed before the next ordinary meeting of the Council. The Council shall, after giving a hearing to the appellant and the Registrar, take a decision which shall be communicated to the appellant by registered post.

Chapter VII

Conditions of service of Registrar and other staff and the supervisory powers and duties of Registrar

77.

Registrar.

(1)

The post of Registrar shall be permanent. The Registrar shall be a full time Chief Executive Officer of the Council and shall not do any other work except with the permission of the Council. Any person on his first appointment to a clear vacancy in the Office of the Registrar, shall be on probation for one year.

(2)

The Registrar shall draw pay in the scale of Class-II Senior and draw dearness allowance at the rate admissible to the Government Servants drawing an equivalent pay.

78.

Other employees of the Council.

- No Officer or servant of the Council shall, without the previous permission of the council, engage himself in any work unconnected with the work of the Council.

79.

Attendance.

(1)

The Registrar and other employees of the Council shall attend Office at the hours as notified by the Government for Government offices in Goa, Panaji and at other times when considered necessary.

(2)

The Registrar shall not absent himself from duties without permission of the President. The other employees of the Council shall not remain absent from their duties without the permission of the Registrar.

80.

Leave.

(1)

Leave cannot be claimed as of right. The President shall grant leave to the clerical staff of the Council. Leave to peons shall be granted by the Registrar. The Competent authority shall have discretion to refuse or cancel leave of any description to the concerned staff.

(2)

Casual Leave may be sanctioned for special and unforeseen circumstances for a period of not more than eight days at a time, the total period of leave in a year being limited to fifteen days. Casual Leave may, with the permission of the sanctioning authority, be prefixed or suffixed to Sunday and holidays.

(3)

Every employee of the Council (including the Registrar and temporary employees) may be granted leave according to the provisions of the Central Civil Service Rules as in force in the State of Goa.

81.

Retirement.

- The normal age of retirement for all employees including the Registrar shall be 58 years:

Provided the Council may, with the previous sanction of the Government, grant extension of service to any employee for periods not exceeding one year at a time.

82.

Resignation.

(1)

The Registrar may resign his office by giving three months notice in writing to that effect to the President and such resignation shall take effect from the date of acceptance of such resignation by the Council. If he leaves his office without giving any notice as aforesaid, he shall be liable to pay three months salary in lieu of such notice.

(2)

Any other employee of the Council may resign his office by giving one month's notice in writing to the effect to the President if he is temporary, and three months notice if he is permanent, and such resignations shall take effect from the date of acceptance by the Council. In the case of failure to give the required notice the employee shall be liable to pay salaries as payable thereof in lieu of notice period.

83.

Termination of services.

(1)

Council may terminate the services of any employee other than the Registrar, after due enquiry giving such employee fair opportunity to explain as to why his services should not be terminated. The Council may also impose any other minor penalty on any employee other than the Registrar, after giving such employee a show cause notice:

Provided that, it shall be lawful for the Council to terminate the services of its employee who is appointed on a purely temporary basis and who has given an undertaking that his services are liable to be terminated at any time without notice and without assigning any reason.

(2)

The Registrar, as Secretary of the Council, other than the Registrar, the President may suspend such employee pending a full fledged enquiry. During the period of suspension, such employee may be paid subsistence allowance according to the provisions of the Central Civil Service Rules as in force in the State of Goa.

84.

Provident Fund.

(1)

The Council shall establish a provident fund, which shall be administered, maintained and used in accordance with the rules prescribed.

85.

Duties of Registrar.

(1)

The Registrar shall have general control over the management of the Office. All the other employees shall be directly under the Registrar, who shall assign to them their duties.

(2)

The Registrar, as Secretary of the Council, shall conduct and have charge of the correspondence of the council and shall issue all requisite notices in the manner required under these rules.

86.

Maintenance of account and other registers.

- The Registrar shall maintain the following books and registers:-

(1)

Cash Book

(2)

Ledger;

(3)

Inward & Outward ledger including postage accounts;

(4)

Dead stock register;

(5)

Stock register for printed certificates;

(6)

Receipt Books;

(7)

Register for grants;

(8)

Voucher files;

(9)

Attendance roll;

(10)

Register of leave accounts;

(11)

Registers required for the F. F. of the Council;

(12)

Service books and

(13)

Other registers that may be necessary.

87.

Opening of bank account.

- An account shall be opened in the State Bank of India, Panaji or in any Nationalised bank, Panaji in the name of the Council and all monies of the Council shall be deposited in the Bank, subject to the provisions of rule 88. All cheques in Bank shall be signed by President/Vice President/any member of the Executive Committee and by the Registrar jointly.

88.

Receipt of Money.

- The Registrar shall receive all monies payable to the Council. He shall not retain in his hands any sum exceeding Rs. 1000/-, the balance lodged in the Bank to the credit of the Council.

89.

Annual Statement of Income and Expenditure.

- The Registrar shall, in the month of July in each year, prepare a statement of the income and expenditure of the preceding financial year, and draw the attention of the council to such matters as seen deserving of notice.

90.

Annual Accounts and Audit.

- The annual accounts shall be made up by the Registrar under the direction of the Executive Committee. They shall be audited by the Chief Auditor, Local fund Accounts, as soon as possible after the closed of each financial year.

91.

Estimates of Revenue and Expenditure.

(1)

In the month of February in each year, an estimate of the revenue and of the expenditure of the Council for the year commencing on 1st April then next ensuing, shall be laid before the Council.

(2)

Such estimate shall make provision for the fulfilment of the liabilities of the Council and for effectively carrying out its objects. It shall include on its revenue side, besides all revenue ordinarily anticipated, all fees received from registration and other sources.

(3)

The Council shall consider the estimate so estimated to it and shall sanction the same without modifications or subject to such modifications as it may deem fit.

92.

Supplementary estimates.

- The Council may at any time during the year for which any estimate has been sanctioned, cause a supplementary estimate to be prepared and submitted to it. Every such supplementary estimate shall be considered and sanctioned by the Council in the same manner as if it were an original annual estimate. No expenditure shall be incurred by the Council which is not duly provided for in the budget or in a supplementary budget estimate.

93.

Scrutiny of claims.

- A bill or other voucher presented as a claim for money shall be received and examined by the Registrar. If the claim is for a sum not exceeding Rs. 50/- and the bill is in order, he shall pay it. If the claim is for a sum exceeding Rs. 50/- but not exceeding Rs. 750/- the payment shall be made after the claim is sanctioned by the President. If the claim is for a sum exceeding Rs. 750/-, the payment shall not be made until it has been examined and passed by the Executive Committee.

94.

Accounting of all sums received or spent.

- The Registrar shall immediately bring into account in the cash book all monies received or spent by the Council.

95.

Application of Goa Civil Service Rules.

- Save as otherwise expressly provided in these rules, until the framing of the Goa Civil Service Rules, the provisions of the Central Civil Service Rules, as in force in the State of Goa, shall be applicable to the employees of the Goa Medical Council.

Chapter VIII

Miscellaneous

96.

Form of list and particulars to be included.

(1)

The list of registered practitioners printed and published under sub-section (1) of section 21 of the Act shall be in Form 13. The list shall be divided into different parts corresponding to the parts of the register. Every list to be published subsequent to the first list shall show the names of all persons entered in the list as on the 31st December preceding the year of such publication, and shall be published on or before a date to be decided by the Council.

(2)

There shall be made every year and entered in the printed list of registered practitioners, enumeration of-

(i)

the total number of persons on the register before the 31st December immediately preceding such year;

(ii)

the number of persons added by registration during such preceding year;

(iii)

the number restored to the register;

(iv)

the number removed from the register, stating the section of the Act under which the name has been removed; and

(v)

the number removed by reason of death.

97.

Manner of publication of list.

(1)

A printed copy of the list shall be published by the Registrar by exhibiting it on the notice board of his office. A notice that the printed copy of the list has been exhibited on the notice board and is available for perusal, shall be given by the Registrar in the Official Gazette and such newspapers as the Council may select.

(2)

The printed copies of the list shall be distributed to such Officers, institutions and other organisations as the Government may from time to time direct and as directed by the President from time to time.

(3)

Printed copies may also be kept for sale to the public/R.M.P.

98.

Charging of fees.

- Fees shall be levied by the Council as shown below:

Sr. No.

Purpose

Rs.

(i)

For recording change of name in the register.

50

(ii)

For entering each additional qualification specified in the Schedule to the Act or in the First Schedule or Part I of the Third Schedule to the Indian Medical Council Act, 1956.

50

(iii)

For entering each additional qualification specified in the Second Schedule or Part II of the Third Schedule to the Indian Medical Council Act, 1956.

50

(iv)

For issue of duplicate certificate of registration.

100

(v)

For issue of a certified copy of an entry in the register.

50

(vi)

Provisional Registration.

200

(vii)

Permanent Registration.

500

(viii)

Temporary Registration (special).

250

(ix)

Continuation (Renewal) of Registration.

50

Form 1

(See Rule 4)

Notice of publication of Electoral Rolls

1. Notice is hereby given that the electoral roll for election of members of the Goa Medical Council has been prepared in accordance with the Goa Medical Council Rules, 1995 and copies of the roll will be available for Inspection and/or sale at the office of the Council at the address of the Council.

2. (a) Every claim for inclusion of a name in the roll; or

(b)

Every objection to-

(i)

the inclusion of any other person's name in the roll; or

(ii)

to any particulars in any entry in the roll;

shall be addressed to the Registrar and shall be presented or sent by post to him at the address referred to above so as to reach him on or before the day of 19...

.....
Registrar, Goa Medical Council.

Panaji

Dated the day of 199

Form 2

(See Rule 7)

Notice of Election Election to the Goa Medical Council, Panaji Notice is hereby given pursuant to the provisions of the Goa Medical Council Rules, 1995 that

(1)

an election is to be held of *..... members of the Goa Medical Council elected by the registered practitioners from amongst themselves;

(2)

nomination of registered practitioners eligible to fill the seat/seats @ are invited;

(3)

forms of nomination paper may be obtained from the Registrar on application;

(4)

nomination papers may be sent so as to reach the undersigned at or before.....(hours) on the(date)(place);

(5)

nomination papers will be taken up for scrutiny at(hours) On the.....(date) at(place);

(5-A) candidature may be withdrawn by a notice in writing signed by the candidate and delivered to the Returning Officer so as to reach him at or before(hours)

.....(date)(place);

(6)

in the event of the election being contested

(a)

the voting papers may be sent by the electors so as to reach the Returning Officer at or before(hours) on the(date) At(place)

(b)

the votes will be taken up for scrutiny and counting at(hours) On the(date) at(place);

Date:

.....

Address:

Returning Officer.

* Here insert the number of impending vacancies.

@ Strike off the alternative not required.

Form 3

(See Rule 8)

Form of Nomination Paper

Election to the Goa Medical Council, Panaji

(To be filled in by the candidate)

I hereby offer my candidature for the election to Goa Medical Council. I further declare that I shall work for Goa Medical Council if elected.

Date

.....(Signature of candidate)

(To be filled in by the Proposer)

I hereby nominate as a candidate for the forthcoming election to the Goa Medical Council.

(1)

Full name of candidate

(2)

Full postal address of the candidate

(3)

Serial number of candidate in the electoral roll

(4)

Full name of proposer

(5)

Full postal address of proposer

(6)

Serial number of proposer in the electoral roll

Date

Signature of Proposer

(To be filled in by the Secondar)

I second the above nomination-

(1)

Full name of secondar

(2)

Full postal address of secondar

(3)

Serial number of seconder in the electoral roll

Date

Signature of Secunder

(To be filled in by the Returning Officer)

Serial No. of nomination paper

This nomination paper was delivered to me at my office (hour) on (date).

Date

.....Returning Officer

Decision of Returning Officer accepting or rejecting the Nomination Paper.

I have examined this nomination paper in accordance with the provisions of the Goa Medical Council Rules, 1995, and decided as follows:-

Date

.....Returning Officer

Form 4

(See Rule 16)

Counterfoil of

Ballot Paper

Ballot Paper

Outerfoil

(front)

(1)

Serial number of ballot paper

Serial No.

Name of Candidate

Vote (X)

(1)

(2)

(3)

(2)

Number of elector on the electoral roll to whom the ballot paper has been sent.

.....

(Returning Officer)

(Back of outerfoil)

Directions to Elector for Recording of Votes

(1)

You have vote(s).

(2)

Record each vote by putting a cross in column (3) against the name of the candidate for whom you wish to vote.

(3)

You must not put more than *..... crosses.

(4)

You must not put more than one cross opposite the name of any candidate.

(5)

Your vote is secret. You must not put your signature on the ballot paper or make any other mark on it which will reveal your identity.

(6)

After you record your votes put the ballot paper in the smaller cover, close the cover and put it in the larger cover. Close the larger cover. Write your name and put your signature at the places marked on the larger cover.

(7)

Despatch the larger cover to the Returning Officer so as to reach him before @.....

*The particulars shall be filled in by the Returning Officer.

@ Here enter the time and the date at or before which the ballot paper must reach the Returning Officer.

Form 5

(See Rule 17)

Large Cover

Election to the Goa Medical Council, Panaji ELECTION

- IMMEDIATE

No. of elector in the electoral roll:-

To

The

Returning Officer Address

Name of the elector

Not to be opened before counting

?.....Signature of the
elector

?.....

Form 6

(See Rule 53)

Form of Register of Medical Practitioners

Part {

| -

| Registration Number

| Full name including father's/husband's name and
surname and also maiden name and surname in case of a married
woman

| Address

| Nationality

| Qualifications and date on which each was
obtained

| Date of Registration

| Date of removal and if subsequently reinstated

Re-registered the date of re-entry after removal

| Remarks such as warnings merit certificate,
awards, etc.

| -

| (1)

| (2)

| (3)

| (4)

| (5)

| (6)

| (7)

| (8)

| }

Form 7

(See Rule 61)

Form of Individual Notice for Renewal of Registration

To

(Here mention the name and last known address of the Medical Practitioner).

Sir,

In pursuance of clause (b) of Section 23 of the Goa Medical Council Act, 1991, notice is hereby given that you should

pay to the undersigned a fee of rupees in cash or by crossed postal order or by money order or by Demand Draft payable in Panaji on or before *... for the continuance of your name on the register under the said Act for a further period of five years.

If you fail to pay the fee within the time stated above, your name shall be removed from the register as a defaulter.

Your faithfully,Registrar, Goa Medical Council

Date:

Address:

* Here enter the date two months subsequent to the date of publication of general Notice in the Goa Official Gazette.

Form 8

(See Rule 57)

Certificate of Registration

Goa Medical Council, Panaji

Registration No.

This is to certify that the withinsigned

Space for Photograph

Doctor/Shri/Shrimati/Kumari*(Full name) possessing the qualifications of has been duly registered under the Goa Medical Council Act, 1991, in part **..... of the register.

In witness whereof are herewith affixed the seal of the Goa Medical Council, Panaji, and the signature of the Registrar.

..... Registrar, Goa Medical Council.

Dated the 19

SEAL OF THE COUNCIL

* Strike off the alternative not applicable.

** here insert the part of the register.

Form 9

(See Rule 59)

Goa Medical Council

Certificate of Provisional Registration

Registration No.

This is to certify that *Shri/Shrimati/Kumari ofhaving passed the Third M.B.B.S. Examination of the University in the year has been given provisional registration under the Goa Medical Council Act, 1991, for the purpose of Practical Training (Internship). This certificate does not entitle the holder to practise medical profession at any place other than the medical college, hospital or its ancillary units.

In witness whereof are herewith affixed the seal of the Goa Medical Council, Panaji, and the signature of the Registrar.

Subject to the provisions of the said Act, this certificate is valid upto the day of **19 or completion of Internship whichever is latest.

Seal

Dated the 19

.....Registrar.

N. B.:- This certificate must be returned to the Council at the time of permanent Registration.

* Strike off the alternative not required

** Here insert the date of validity of certificate.

Form 10

(See Rule 55)

Form of Application for Renewal of Registration

To,

The Registrar,Goa Medical Council*.....

Subject: Renewal of Registration.

Sir,

In reply to your notice dated I request that my name may be continued on the Register of Medical Practitioners for a further period of five years. The necessary particulars are given below:-

Full name:(Beginning with surname)

Maiden name in case of married woman(Beginning with surname)

Registered qualifications with dates of Registration

Registration No.

Permanent address for purpose of registration

Yours faithfully,

(Signature)

Date

Note :-

1. This form shall be returned duly completed so as to reach the Registrar, Goa Medical Council for continuance of registration within forty-five days of the date of the notice.

2. All details shall be correctly filled in.

3. Applications which do not contain the required particulars are liable to be rejected.

4. Additional qualifications and change of address for communication must be notified to the Council immediately.

*Here enter full address of the Registrar.

Form 11

(See Rule 67)

Notice

(1)

On behalf of the Goa medical Council, I(name) the Registrar, hereby give you notice that on an examination of the materials available, it is found that prima facie case exists for holding an inquiry into your conduct in the matters hereafter mentioned and do hereby charge you as under:-

(Here mention specific charges)

(2)

A statement of allegations and a statement of evidence are appended.

(3)

You are called upon to put in your written statement of defence alongwith such documents as you intend to reply on in your defence in answer to the above charges within..... days from the date hereof and to state at the same time whether you desire to be heard in person by the Council. If you desire to examine any witnesses in your defence, you are called upon to furnish at the same time the names and addresses of your witnesses. On your failure to put in your statement or to furnish the names and addresses of your witnesses within the time allowed to you, it will be presumed that you do not wish to make a statement or to furnish any witnesses.

(4)

You are further called upon to state why the above charges or any of them if held proved, should not be considered as good and sufficient ground for imposing upon you any of the penalties specified in sub-section (1) of Section 22 of the Goa Medical Council Act, 1991.

(5)

A copy of Section 22 of the Goa Medical Council Act, 1991 together with extract of rules relating to inquiry procedure under the Goa Medical Council Rules, 1995 is enclosed for your ready reference. Your attention is particularly invited to Rule 67. You may, if you so desire, apply for copies of the relevant documents.

Date

..... Registrar, Goa Medical Council.

Form 12

(See Rule 75)

Application for Re-entering name in the Registrar

To,

The Registrar, Goa Medical Council.

(1)

I, the undersigned (i) now holding the qualification (ii) apply for re-entry of my name in the Register.

(2)

By the order dated (iii) the Goa Medical Council, directed my name to be removed from the Register on a complaint made by (iv) and the misconduct for which the Council directed the removal of my name was (v)

(3)

Since the removal of my name from the Register, I have been residing at (vi) ... and my occupation has been (vii)... .

(4)

It is my intention if my name is re-entered in the Register to (vii)

(5)

The grounds of application are (vii)

(6)

I forward herewith

(a)

The degree/diploma/licence of (ii) ... in original.

(b)

A certificate of good character from (ix)

.....Signature of the Registered Practitioner

(i)

Insert full name.

(ii)

Insert qualifications, if any.

(iii)

Insert date.

(iv)

Insert name and address of complainant, if any.

(v)

Insert charge on which name was removed.

(vi)

These blanks must be filled in according to circumstances.

(vii)

Insert particulars as to proposed future professional occupation.

(viii)

All facts and grounds on which the application is made should be clearly and concisely stated.

(ix)

Insert name of Gazetted Officer or Justice of Peace giving the certificate.

Form 13

(See Rule 96)

Form of List of Registered Practitioners

Part {

|-

| Serial No.

| Name, qualifications and address

| Registration No. and date of registration

|-

| (1)

| (2)

| (3)

|-

|

|

|

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Form 14

(See Rule 59)

Goa Medical Council

Form of Application for Provisional Registration under Section 19

To

The Registrar, Goa Medical Council, Panaji.

Sir,

I request you to give me provisional registration under section 25 of the Indian Medical Council Act, 1956 and to issue the necessary certificate. My particulars are stated below:

Name in full (beginning with surname and including *father's/
husband's

.....
Name in (BLOCK LETTERS ONLY)

.....
Address

.....
Maiden name and surname in the case of a married woman
(beginning with surname in BLOCK LETTERS)

.....
Nationality :

Date of Birth:

.....
Qualification or Examination passed

.....
Name of University or Licensing Body

.....
Institution from which appeared for the Examination and number
at the Exam.

.....
Date of passing the Examination or of obtaining the
qualification

.....
I forward herewith:

(i)

My Birth Certificate or Matriculation Certificate or SSC Exam. Certificate or School Leaving Certificate or Domicile, Age and Nationality Certificate or extract from Passport in original.

(ii)

The Degree or Diploma or Certificate of passing the qualifying Examination which I possess, in original, and

(iii)

Certificate from the Head of the Medical Institute (recognised by the University) where I have been admitted for internship training.

These may be returned to me when no longer required.

Please forward Original Certificates alongwith copies thereof duly attested by a Gazetted Officer. The Originals will not be returned if they are not accompanied by copies.

200.

/-

Receipt No.

Date

I have been selected for *Practical(State name of
approval Institution) training at the Employment in a medical capacity at the
.....(State bane of approval Institution)

*Appointment in the Medical Services of the Armed Forces of the Union and I enclose as evidence.

(4)

The registration fee of Rs. 200/- (Two hundred only) is sent by Demand Draft.

(5)

I am applying for registration for the first time and I was not registered as medical practitioner in India before the date of this application.

(6)

I have carefully read the instructions sent with this form and I certify that the particulars furnished above are true to the best of my knowledge and belief.

Yours faithfully,

.....(Usual Signature)

Date:

Place:

Instructions

(1)

All particulars shall be filled in by the applicant only.

(2)

All particulars should be in neat legible or type-written.

(3)

The registration fee should be sent by Demand Draft only.

(4)

The applicants should remember that their names entered in the application must exactly correspond with their names at the University or other Examinations as the case may be.

(5)

Evidence under paragraph 3 of the application shall include selection or appointment Order.

Hours of Payment:

From 9.30 a.m. to 1.00p.m. and from 2.30 p.m. to 5.00 p.m. on all working days from Monday to Friday.

Provisional Registration fee Rs. 200/-

Form 15

(See Rule 59)

Goa Medical Council

Form of Application for Registration

To

The Registrar, Goa Medical Council, Panaji.

Sir,

I request you to register my name and other particulars as stated below, under the Goa Medical Council Act, 1991 and further to give me a certificate of registration:-

NAME IN FULL (beginning with surname and including *father's/
husband's name in BLOCK LETTERS)

.....
.....

ADDRESS (to be entered in the Register)

.....
.....

Maiden name and surname in the case of a married woman
(beginning with surname in BLOCK LETTERS)

.....
.....

Nationality :

Date of Birth:

.....

Description of qualification of which registration is desired.

The name of the University or The Licensing Body should Also be

stated.

Date of obtaining the qualifications. State also the institution from which you appeared for the said exam, along with your number at examination.

(1) Date ?.....(2)

Institution: ?.....(3)

No. at the Exam. ?.....

I forward herewith original certificates along with their xerox copies:-

(1)

*Birth Certificate or

*Matriculation Certificate or

*SSC Exam. Certificate or

*School Leaving Certificate.

*The degree

*Diplomas

*Licence

*Certificates

*Other evidence in support of my having obtained the qualification which I possess, in original.

*2 Passport size photographs.

*Evidence of Registration in the Dte. of Health Services, Panaji, Goa.

*File.

(2)

The registration fee of Rs. 500/- (Rupees five hundred only) is sent by Demand Draft in favour of the Registrar, Goa Medical Council, Panaji-Goa.

(*3) I am applying for registration for the first time and I was not registered as a medical practitioner under any law in India before this.

(*4) I am/was provisionally registered under Section 25 of the Indian Medical Council Act, 1956 and enclose the certificate of provisional registration in original.

(5)

I was/have been registered under the (See the Act or Law) in the year and my registration number is/was

(6)

I have carefully read the instructions sent with this form and I certify that the particulars furnished above are true to the best of my knowledge and belief.

Yours faithfully,

.....(Usual Signature)

Instructions

(1)

All particulars in the application shall be filled by the applicant only.

(2)

All particulars should be in neat legible hand.

(3)

The registration fee should be sent by Demand Draft only.

(4)

The applicants should remember that names entered in the application must exactly correspond with their names at the University of other examination, as the case may be.

Specimen of Practitioner's Signature as used on Medical Certificate

Present Address

*Strike off the alternative not applicable.

N.B. Please also forward copies of certificates and other evidence, if any, under para 2 of the application.

Hours of Payment:

9.30

a.m. to 1p.m. & 2 p.m. to 5p.m. on all working days from Monday to Friday.

Registration fee-Rs. 500/-.

Demand Draft in favour of the Registrar, Goa Medical Council, Panaji, Payable in Panaji.

Form 16

(See Rule 61)

Form of final notice to a registered practitioner for continuance of his name on the Register

To,

(Here mention the name and address of the Medical Practitioner as entered in the Register)

Sir,

I am directed to invite your attention to my notice dated the 19, and to give you a final notice as required by Clause (b) of Section 23 of the Goa Medical Council Act, 1991, calling upon you, to return to me the enclosed form of application for the continuance of your name in the Register within forty-five days from the date of this notice together with a fee of Rupees fifty only.

If you fail to return the form of application duly filled in and signed alongwith the fee of rupees fifty on or before your name will be removed from the register as a defaulter.

Yours faithfully, Registrar, Goa Medical Council. *

.....
Date

*Here enter full address of the Registrar.

Form 17

Form of Notice to a Registered Practitioner for continuance of his name on the Register, under Clause (b) of sub-section (4) Section 16

(Here mention the name and address of the medical practitioner as entered in the register).

(1)

In pursuance of Clause (b) of sub-section (4) of Section 16 of the Goa Medical Council Act, 1991 notice is hereby given calling upon you to return to me the enclosed form of application for the continuance of your name on the register within forty-five days of this notice.

(2)

If you fail to return the application duly filled in and signed on or before it shall not be accepted thereafter unless it is accompanied by a late fee of rupees fifty only.

Registrar, Goa Medical Council. *

Date

*Here enter full address of the Registrar.

Related AI tags, queries and research notes

Translation